

DECISION

Complaint No. : POS/47/ 2025/R-Thar/2025.

Name and address of the complainant : Syed Hussain Shah s/o Mithan Shah,
r/o Village Haido, Taluka Mithi,
District Tharparkar.

Name of the Agency Complained against : Police Department.

Name & Designation of Investigating Officer : Mr. Muhammad Umar Panhwar,
Regional Director Tharparkar @Mithi.

Vetted by : Dr. Khalil-ur-Rahman Shaikh, Advisor I

Subject : REFUSAL OF REGISTERING FIR/ ARRESTING
ACCUSED PERSONS ALLEGEDLY INVOLVED
IN STEALING A RICKSHAW.

THE COMPLAINT

Mr. Syed Hussain Shah filed a complaint on 05-03-2025 against the Police Department, alleging that the Incharge of Police Station Vijoto failed to register FIR and arrest the accused persons who had stolen his Rakhsha/Chingchi on 01-02-2025. The complainant stated that despite several requests, no action was taken by the concerned police officials.

PROCEEDINGS

2. The complaint was admitted under Section 10, of the Establishment of the office of the Provincial Ombudsman (Mohtasib) Sindh, Act 1991.

3. The matter was taken up with the Senior Superintendent of Police, Tharparkar at Mithi vide letter dated 10-03-2025 for the submission of report. In response, the SSP vide letter dated 18-03-2025 forwarded a copy of letter dated 17.03.2025 of DSP/ SDPO Mithi who stated that site of stolen Rickshaw is located in Taluka Kunri, district Umerkot.

4. Accordingly, a report was sought from the SSP, District Umerkot, on 09-04-2025. The SSP Office, Umerkot, submitted its report vide letter No. CC/606/2025 dated 24-04-2025, the main points of which are summarized as follows:

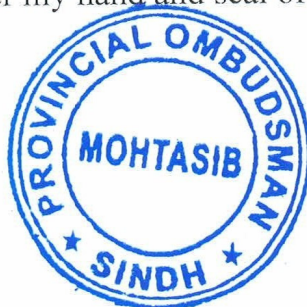
- i. The petitioner was contacted on 22-04-2025 at 15:32 hours on his mobile number 0345-0160079, during which he stated that the case falls within the jurisdiction of Police Station Vijoto. He also claimed to have already submitted an application in the Regional Office of the Ombudsman at Mithi.
- ii. The petitioner's application filed at the Regional Office, Provincial Ombudsman Sindh, Mithi, mentioned allegations against Mr. Ibrahim S/o Khamiso, a rickshaw driver, regarding theft of a rickshaw parked near the shop of Mr. Madad Ali Khaskheli at around 2:00 a.m on 01-02-2025. The petitioner suspected involvement of Mr. Gul Hassan Shah, along with Mr. Ibrahim Gajo and Mr. Madad Ali Khaskheli.
- iii During inquiry, it was revealed that the original complainant, Mr. Ibrahim Gajo, had himself informed Police Station Talhi about the missing rickshaw. Upon verification, it was found that the rickshaw was later recovered and that a financial transaction had occurred between Mr. Ibrahim Gajo and Mr. Syed Hussain Shah, complainant involving exchange of a CD-70 motorcycle (Model 2023) and a cheque book.

- iv. Evidence suggested that Mr. Syed Hussain Shah had engaged in a fraudulent transaction with the rickshaw owner and misused the cheque book provided to him.
 - v. It was further verified that Mr. Ibrahim Gajo, the original rickshaw owner, was unwilling to pursue the matter further and treated it as a private financial dispute rather than theft.
 - vi. The inquiry concluded that Mr. Syed Hussain Shah had misled the police and lodged a false complaint against others out of personal enmity.
 - vii. It was also reported that Case No. 121/2025 under Section 23 of the Sindh Arms Act was registered against the petitioner at Police Station Umerkot, and that he is currently under custody.
 - viii. The SIHO Police Station Talhi further confirmed that despite repeated opportunities, the petitioner neither appeared before the Police Station Talhi nor cooperated in the inquiry. Upon visiting his provided address at Village Haido, it was found that the petitioner had shifted to the jurisdiction of Police Station Vijoto.
5. The report was forwarded to the complainant for rejoinder vide letter dated 29-04-2025, followed by three reminders last dated 23-06-2025. On 25-06-2025, the complainant appeared and submitted written statement in which he stated that his grievance had been redressed and requested to close the case.
6. Subsequently, the final inquiry report was sought from the SSP Office Umerkot through letters dated 18-08-2025 and 26-08-2025. On 25-09-2025, the SIHO Police Station Talhi appeared and submitted a detailed final report confirming the facts as stated above, while the complainant did not appear. He concluded that the petitioner's allegations were false, baseless, and motivated by personal grudges. The dispute between the parties appears to be of a civil nature relating to the ownership and possession of the rickshaw, and no cognizable offence was established.

DECISION

7. In view of the above facts and circumstances, I, in exercise of the powers conferred upon me under Section 11 of the Establishment of the Office of Ombudsman, for the Province of Sindh Act, 1991, dispose of the case accordingly.

Given under my hand and seal of Office



Sd /-
(Muhammad Sohail Rajput)
Sitara-e-Imtiaz-PAS
Ombudsman Sindh

Karachi, dated: 07th April, 2026